

The Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Rules, 1974

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State of Andhra Pradesh - Act

The Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Rules, 1974

ANDHRA PRADESH

India

The Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Rules, 1974

Rule THE-ANDHRA-PRADESH-LAND-REFORMS-CEILING-ON-AGRICULTURAL-HOLDINGS-RULES-1974 of 1974

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The Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Rules, 1974

Published vide G.O.Ms.No. 1141, Revenue (G), 7th December, 1974

In exercise of the power conferred by sub-section (1) of Section 27 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Act

1 of 1973

) the Governor of Andhra Pradesh hereby makes the following Rules:-

Rules

1.

Short title and commencement:

(1)

These Rules may be called the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Rules, 1974.

(2)

They shall come into force on the date appointed by the Government under sub-section (3) of Section 1 of the Act.

2.

Definitions:

- In these Rules, unless the context otherwise requires:

(a)

'Act' means the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Act 1 of 1973)

) :

(b)

'declarant' means every person who is required to furnish a declaration under Section 8 or Section 18 of the Act:

(c)

'form' means a form appended to these Rules;

(d)

'Table' means a Table appended to these Rules:

(e)

'Tahsildar' means a Tahsildar holding charge of taluk or a Deputy Tahsildar holding independent charge of a taluk or a sub-taluk and includes a Special Deputy Tahsildar appointed by the District Collector for purposes of these Rules.

3.

Procedure for furnishing of declarations:

(1)

Every declaration under Section 8 or Section 18 shall be in Form 1 and shall be furnished by the declarant in triplicate: Provided that where the holding of the declarant comprises lands in more than one taluk, the declarant shall furnish an additional copy of the declaration for each such taluk.

Explanation:- If a declarant's holding comprises lands in two different taluks, the declarant shall submit the declaration in quadruplicate and so on.

(2)

The declaration shall be presented either in person or by an authorised agent in the office of the Tribunal or shall be sent by registered post or recorded delivery with acknowledgement due addressed to the Tribunal and the receipt of every such declaration shall be acknowledged in Form II by an officer authorised in this behalf by the Tribunal.

(3)

Every declaration received in the Office of the Tribunal, shall be assigned a case number serially for each taluk in which the whole or major part of the holding is situated, and the name and address of the declarant and the case number assigned to him shall be entered in a register to be maintained for this purpose in the office of the Tribunal.

(4)

The notice to be issued by the Tribunal under sub-section (2) of Section 8 shall be in Form III.

(5)

If any person who is liable to furnish a declaration under sub-section (2) of Section 8 or under Section 18 fails to furnish the declaration within the specified time, without prejudice to any action that may be taken against him under Section 24, the Tribunal may obtain the necessary information by making a reference to the Tahsildar within whose jurisdiction, a major part of the holding of the person is situated, or such person ordinarily resides, or in any other manner as the Tribunal considers convenient for obtaining the necessary information.

4.

Publication and verification of declarations:

(1)

The declaration furnished or information obtained under Section 8 or Section 18, as the case may be, shall be published in the following manner:-

(a)

a copy of the declaration or information shall be kept in the office of the Tribunal for public inspection on any working day

in the presence of an officer authorised in this behalf by the Tribunal; and

(b) the fact of the receipt of such declaration or information and its availability in the office of the Tribunal for public inspection shall be announced by beat of tom tom in all the villages in which the holding or any part thereof is situated.

(2) A public notice in Form IV containing the particulars of land and the person holding such land in respect of declaration, or information received shall be published by affixing a copy thereof on the notice boards of the office of the Tribunal in which the declaration has been filed and of the offices of Tahsildars and the Gram Panchayats within whose jurisdictions, the holding or part thereof is situated.

(3) A copy of the declaration shall be furnished by the Tribunal to the Officer authorised by the Government in this behalf.

(4) Every declaration furnished shall be referred by the Tribunal for local inspection and verification by the Tahsildar within whose jurisdiction the holding or any part thereof is situated.

(5) The Tahsildar to whom a declaration has been referred under sub-rule (4) shall make or cause to be made an inspection or verification as soon as may be practicable, and shall submit a full and complete report as to-

(a) the correctness of the statements made in the declaration;

(b) the taram or bhaganna which each land in the declaration bears or is deemed to bear;

(c) the correct classification and extent of standard holding of each land;

(d) the relative proportion of the extent of the land of each class to the extent of a standard holding of the appropriate class under which the land falls;

(e) the land revenue payable on each land; and

(f) such other particulars and information as would be useful to the Tribunal for arriving at a correct determination of the ceiling area and the extent of the land, if any, held in excess of the ceiling area.

(6) A copy of the report on its receipt by the Tribunal shall be furnished to the declarant and also the officer authorised by the Government in this behalf.

5. Computation of holdings:

- In computing the holding of a person or a family unit consisting of lands of different classes:-

(i) each land shall be placed in the appropriate class in accordance with its classification as shown in the First Schedule to the Act;

(ii) the extent of the standard holding shall be determined in respect of each class of land in accordance with Section 5, increasing it whenever it is required under the provisos to sub-section (1);

Explanation:- In the case of a lanka or a padugai land or a land on which a coconut garden, guava garden or grape garden is raised, the land shall first be classified in the appropriate class according to the First Schedule to the Act and the standard holding shall be computed accordingly. Where the standard holding of such class to land so computed is in excess of the maximum specified in proviso (vi) to Section 5 (1), the extent of the standard holding shall be restricted to such maximum;

(iii) the relative proportion of the extent of land of each class to the extent of a standard holding of that class shall be worked out by dividing the extent of the land in that class by the extent of the standard holding for the same class with reference

to the conversion factors in the relevant Tables; and the aggregate of all such proportions, which shall be worked out up to four decimal places shall be the extent of the holding of the person in terms of the standard holding:

Illustration I:- If a double crop wet land in the delta tract of the West Godavari district bears taram No. 1, it is classified according to Clause 1 of the First Schedule to the Act, under Class A. The extent of standard holding for double crop wet land falling under Class A according to the Table under Section 5(1) is 4.05 hectares or 10 acres and if the actual extent of such double crop wet land in acres 15.45 cents, then the relative proportion of acres 15.45 of the land to the extent of the standard holding for the class of land with reference to Table II hereto may be arrived at as follows:

1.0000

for 10 acres plus 0.5000 for 5 acres plus 0.0400 for 40 cents plus 0.0050 for 5 cents, which is equivalent to 1.5450 standard holding.

Illustration II:- If a single crop wet land lying in settlement group No. 12 in the Telangana area bears 9 annas bhaganna, then according to Clause I of the First Schedule to the Act, the land is classified under Class F for which the standard holding according to the Table under Section 5(1) is 13.93 hectares or 27 acres. If the actual extent of such land in acres 14.20 guntas, then the extent of the land may be deemed to be equivalent to acres 14.50 cents according to Table I hereto showing conversion of guntas to cents and the relative proportion of Acres 14.50 of single crop wet land to the extent of the standard holding for that class of land may be calculated with reference to Table V hereto as equivalent to 0.3704 for 10 acres plus 0.1481 for 4 acres plus 0.0185 for 50 cents, which is equivalent to 0.5370 standard holding.

Illustration III:- If a dry land in Badvel taluk which is in settlement Tract III (Badvel, Sidhout and Rajampet taluks) of Cuddapah district bears settlement taram No. 12, then according to Clause 2 of the First Schedule to the Act, the land is classified under Class K. In case that land is situated in the drought-prone area as declared by the Government, the extent of standard holding of 21.85 hectares or 54 acres applicable to Class K has to be increased by 20 per centum according to proviso (ix) to Section 5 (1); and therefore the extent becomes ac. 64.80 cents. If the actual extent of such land is ac. 34.87 cents, then the relative proportion of the extent of ac. 34.87 cents of dry land to the extent of the standard holding may be calculated with reference to Table VIII, hereto, as equivalent to 3x0.1534 for 30 acres plus 0.0617 for 4 acres plus 0.0123 for 80 cents plus 0.0011 for 7 cents, which is equivalent to 0.5380 standard holding.

6.

Enquiry and determination of ceiling area:

(1)

The Tribunal shall fix the date on which and the time and place at which an enquiry in respect of the declaration, or information published and in respect of the objections, if any, received thereto, will be held and intimate the same by a notice in Form V, to the declarant or the holder of the land in respect of which the information has been received, to the other persons interested, to the objectors, if any and to the officer authorised by Government in this behalf.

(2)

On the date fixed for the enquiry under sub-rule (1) or on such other date or dates to which the enquiry may be adjourned, the Tribunal shall hear the declarant or the holder, the person interested, the objectors, if any, who may be present and the authorised officer, and may also give them an opportunity to adduce such evidence, both oral and documentary, as may be necessary. After examining the evidence to adduced and such other person or persons or documents as the Tribunal may consider necessary for arriving at a just decision, the Tribunal shall, as soon as may be, pass an order under Section 9 determining whether the person holds or is deemed to hold on the notified date or specified date, as the case may be, an extent of land in excess of the ceiling area, and if so, the extent of land so held in excess as on that date.

7.

Surrender of land:

(1)

The notice to be served on every person whose holding is in excess of the ceiling area under sub-section (2) of Sec. 10, shall be in Form VI.

(2)

The statement required to be filed by a person under sub-sec. (2) of Section 10 shall be filed, either by presenting it in person or by an authorised agent, in the office of the Tribunal or by sending it by registered post or recorded delivery with acknowledgement due addressed to the Tribunal, within the time specified in the notice referred to in sub-rule (1).

(3)

Where the Tribunal proposes to refuse to accept the proposed surrender of any land, it shall serve a notice in Form VII on the person concerned requiring him to surrender any other land in lieu thereof.

(4)

The Tribunal shall, before passing an order under sub-section (3), sub-section (4) or sub-section (5) of Section 10, publish the particulars of land proposed to be surrendered or selected in Form VII in the same manner as provided for publication of the notice in Form IV, and consider the objections, if any received in pursuance of such publication.

(5)

In the case of land liable to be surrendered by an alienee in accordance with the proviso to sub-section (8) of Section 7, the Tribunal shall, after giving an opportunity of being heard to the alienee, pass such orders as it deems fit, and where there are more than one alienee, such surrender shall be in proportion to the extent of such land in the possession of each alienee.

(6)

Every order passed by the Tribunal under Section 10, shall be communicated in writing to the declarant and objectors, if any, and a copy thereof shall be marked to the Revenue Divisional Officer and the Tahsildar within whose jurisdiction the land surrendered or deemed to be surrendered is situated.

(7)

[(a) Where the Tribunal proposes to accept the surrender of any land not being the whole of land situated in a survey number or a sub-division or any land which lies in an un-surveyed area, the Tribunal shall forward one copy of the sketch furnished by the person surrendering the lands to the Tahsildar of the taluk in whose jurisdiction the land proposed to be surrendered lies for getting it provisionally sub-divided or surveyed, as the case may be, before the Tribunal passes a final order accepting such surrender.]

[Inserted by G.O.Ms.No. 459, dated 2-4-1975.]

(b)

Where the Tribunal itself selects the land to be surrendered, not being the whole of land situated in a survey number or a sub-division or any land which lies in an un-surveyed area-the Tribunal shall obtain a provisional sub-divisional or survey sketch of such land from the Tahsildar of the Taluk in whose jurisdiction the land is situate.

(c)

Where, the Tribunal passes the final order accepting such surrender it shall authenticate the provisional sub-division or survey record in respect of the land so surrendered and accepted and forward the same together with the order under Section 10 to the Tahsildar concerned for further action to finalise the sub-division or survey under the Andhra Pradesh Survey and Boundaries Act, 1923.

8.

Procedure for taking possession of the land surrendered:

(1)

The Revenue Divisional Officer may on receipt of a copy of the order passed by the Tribunal under sub-rule (6) of Rule 7 in respect of any land surrendered or deemed to have been surrendered by an owner, issued an order in Form IX authorising any officer not lower in rank than a Revenue Inspector to take possession of such land.

(2)

A copy of the order shall be served on the person who has surrendered or is deemed to have surrendered the land and on any other person in possession or occupation of such land.

(3)

Where the person concerned voluntarily delivers possession of the land, the officer authorised to take possession of the land shall record a statement of the person to that effect and also record a certificate in Form X and send the same to the Revenue Divisional Officer under intimation to the Tahsildar and Tribunal concerned.

(4)

Where the person concerned fails to voluntarily deliver possession of the land, the officer authorised to take possession of the land may enter on the land and take possession thereof after removing any obstruction or any unauthorised occupant, if any, on such land if necessary but using such force as he thinks fit and record a certificate in Form X duly attested by two witnesses:

[Provided that where there is a seasonal crop on the ground as on the date of taking possession, or it shall be allowed to be harvested by the person in actual possession or occupation of the land on that date, as his own risk and no

compensation from the Government for any loss or damage to the crop shall be allowed under any circumstances.]

[Proviso is substituted by G.O.Ms.No. 1812, Revenue(G), dated 27-10-1978.]

(5)

The certificate in Form X shall be prepared in triplicate and a copy in each shall be sent to the Tribunal, the Revenue Divisional Officer and to the Tahsildar concerned.

(6)

The particulars of all lands so surrendered or deemed to have been surrendered and taken possession of land vesting in the Government free from all encumbrances, shall be entered in a register by the Tahsildar concerned setting apart separate pages for each revenue village.

(7)

All lands vesting in the Government shall be registered in the Revenue accounts of the village as assessed waste Government lands until their allotment or transfer, as the case may be, in accordance with the provisions of the Act, or until their registry is duly altered in accordance with the rules in force relating to Government lands.

[9. Reversion of land surrendered by usufructuary mortgage etc.: - (1)(a) Where any land is surrendered or is deemed to have been surrendered under the Act by any usufructuary mortgagee, tenant, or person in possession by virtue of a mortgage by conditional sale or through part performance of a contract for sale or otherwise, the possession of such land shall as soon as may be after a seasonal crop on the land is harvested, revert to the owner except in a case where the owner himself surrenders such land as surplus under the provisions of the Act, whereupon it shall vest in the Government free from all encumbrances.]

[Substituted by G.O.Ms.No. 611, Rev.(G), dated 25-5-1977.]

(b)

Where any land is surrendered or is deemed to have been surrendered under the Act by any limited owner, the possession of such land shall, as soon as may be after a seasonal crop on the land is harvested, revert to the person having a vested interest in the remainder.

(2)

Where a person specified in sub-rule (1) fails to deliver possession of the land to the owner or to the person having a vested interest in the remainder as the case may be, voluntarily, such owner or person may apply to the Revenue Divisional Officer for being put in possession of the land.

(3)

The Revenue Divisional Officer shall, after giving an opportunity to the person in possession of making a representation, by order, authorise any officer not below the rank of a Revenue Inspector to take possession of the land and deliver it to such owner or person, as the case may be.

(4)

The procedure laid down in Rule 8 shall, so far as may be, apply in taking possession and delivering the land to the owner, or person, as the case may be, under this rule. A certificate of delivery of possession shall be recorded in Form XI in triplicate and a copy of each shall be sent to the Tribunal, Revenue Divisional Officer and the Tahsildar concerned for purposes of record.

10.

Disposal of lands vested in the Government:

(1)

Subject to the reservations provided in the Act, land vested in the Government under the Act, shall be allotted by the Tahsildar for use as house sites for agricultural labourers, village artisans or other houseless poor persons; or shall be transferred to landless poor persons for purposes of agricultural or for purposes ancillary, thereto in the following manner:

(i)

displaced tenants having no land;

(ii)

landless poor persons; and

(iii)

other poor agriculturists:

[Provided that in respect of each category of persons referred to in Section 14 of the Act and in this rule priority shall be

given to persons locally residing and further from among whom priority shall be given to an ex-serviceman [and a widow of a person employed in the armed forces and who died in a war]

[Substituted by G.O.Ms.No. 861, dated 18-7-1977 vide R.S. to Part II(Ext), dated 22-7-1977.]

belonging to that category :

Provided further that in respect of land surrendered by a Co-operative society, firm or company and vesting in the Government, preference shall, as far as may be practicable, be given to a landless poor person or other poor agriculturist who, as a shareholder of such Co-operative society, or company or as a partner of such firm was cultivating such land on the specified date :

Provided also that land surrendered in the Schedule Areas shall not be allotted or transferred to persons other than members of the Scheduled Tribes.

(2)

The maximum extent of land which may be allotted to an individual or a family unit for use as house-site shall not exceed 0.056 hectares (five cents) and the maximum extent of land which may be transferred to an individual or a family unit for agricultural purposes or for purposes ancillary thereto shall not exceed 1.01 hectares (two and a half acres) of wet land or 2.02 hectares (five acres) of dry land.

(3)

The procedure followed for the allotment or assignment of Government lands for use as house-sites or for purposes of agriculture shall mutatis mutandis apply to the allotment or transfer of lands under this rule.

(4)

The allotment or transfer of lands shall be made by the Tahsildar concerned subject to the following conditions, namely:

(a)

The allottee or transferee shall pay to the Government the sum specified in sub-section (2) of Section 14 in fifteen equal annual instalments from the date of allotment or transfer, each annual instalment being payable before the 1st day of March of every year.

(b)

Where the land transferred contains any fruit-bearing trees or permanent structures, the transferee shall also be liable to pay the value of such trees or structures, as calculated as per Rule 11, and it shall be recovered in fifteen equal annual instalments along with the sum payable for the land under Clause (a).

(c)

No instalment of the sum payable shall be recovered in a Fasli year in which the land revenue on the land is remitted or suspended and such instalment shall stand postponed by one Fasli year and the instalment so postponed shall be recovered together with the instalment of the succeeding year.

(d)

The allottee or transferee, shall, in addition to the instalment payable under this rule, be liable to pay the land revenue and other rates and taxes, if any, payable on the land.

(e)

Where the land is allotted for use as house site, the allottee shall utilise the same for construction of a house thereon within a period of two years from the date of allotment or such further period as the Tahsildar may permit.

(f)

Where the land is transferred for purposes of agriculture or for purposes ancillary thereto, the land shall be cultivated personally by the transferee or any of the members of his family or by hired labour under the supervision and control of himself or any member of his family.

(g)

All lands allotted or transferred shall be heritable, but shall not be transferable, except by way of mortgage in favour of the Government, a Bank or a Co-operative Society, including a Land Mortgage Bank.

Explanation I:- For the purposes of these rules, "poor agriculturist" means a person who or together with the members of his family unit in the aggregate does not own more than 1.01 hectares (2-1/2 acres) of wet land or 2.02 hectares (5 acres) of dry land and in computing the area owned by such person 0.405 hectares (one acre) of wet land shall be treated as equivalent to 0.809 hectares (2 acres) of dry land.

Explanation II:- While transferring land for purposes of agriculture, the land owned by the transferee or any of the members of his family unit shall be taken into account, such that the land transferred to him under these rules together

with the lands already owned by him or the members of the family unit do not, in the aggregate, exceed the maximum extent of 1.01 hectares (2-1/2 acres) of wet land or 2.02 hectares (5 acres) of dry land.

(5)

Where any person fails to pay the instalment due or violates and of the conditions of allotment or transfer, the Revenue Divisional Officer, may after giving an opportunity to the person concerned of making a representation in this behalf within thirty days from the date of communication of a notice, pass an order forfeiting the amount already paid and resuming the land and also authorise any officers not below the rank of a Revenue Inspector to take possession of the land:

Provided that no such land shall be taken possession of until the seasonal crop on the ground is harvested.

(6)

Against every order of forfeiture of the amount or resumption of the land passed by the Revenue Divisional Officer, an appeal shall lie to the District Collector within thirty days from the date of the communication of the order.

[10A. Re-transfer of land vested in Government in certain cases:- (1) Where as a result of the fresh determination of excess land or approval of fresh surrender of excess land or selection of the land to be surrendered in accordance with the Provisions of the Act as amended by the Andhra Pradesh Land Reforms (Ceiling and Agricultural Holdings) Amendment Act, 1977 (Act 10 of 1977), any land vested in the Government under Section 11 is to be re-transferred to the person who surrendered such land, the Tribunal shall pass an order to the effect that the said person is entitled for re-transfer of such land and specify the extent of such land and also the amount, if any, to be repaid by him to the Government in respect of that land and communicate the order to the Revenue Divisional Officer.]

[Inserted by G.O.Ms.No. 611, Rev.(G), dated 25-5-1977.]

(2)

The Revenue Divisional Officer, shall, on receipt of the order of the Tribunal under sub-rule (1), ascertain whether such land has been allotted or transferred to any person prior to the 30th April, 1977, and where such land has not been allotted or transferred, the Revenue Divisional Officer shall issue a notice to the person who surrendered the land intimating that the land shall be re-transferred to him on repayment of the amount specified in the notice, being the amount paid to him by the Government in respect of that land within such time as may be specified in the notice. On such repayment, the Revenue Divisional Officer shall issue an order authorising an officer not below the rank of a Revenue Inspector to deliver possession of the land to such person. The Revenue Inspector, shall in pursuance of the said order deliver possession of the land and furnish a certificate to the effect in Form XI-A.

(3)

(a)

In any case where the Revenue Divisional Officer has found that the land to be re-transferred has been allotted or transferred to any person prior to the 30th April, 1977, he shall furnish a report of the case to the District Collector specifying the period during which such allottee or transferee has been in possession of the land and the extent to which such allottee or transferee has incurred any expenditure on making improvements to such land. On receipt of such report, the District Collector shall determine whether or not such land should be resumed from the allottee or transferee. Where the District Collector determines that such land should be so resumed, he shall direct the Revenue Divisional Officer to resume possession of the land from transferee or allottee for being re-transferred to the person who surrendered such land. On such direction, the Revenue Divisional Officer shall resume possession of the land and take action in accordance with the provisions of sub-rule (2):

Provided that no possession of the land shall be resumed until after a seasonal crop on the land raised by the transferee is harvested by him.

(b)

In lieu of land so resumed and re-transferred, the District Collector shall direct the Revenue Divisional Officer to take steps to allot or transfer to the allottee or transferee any other land vesting in the Government.

(4)

In case where the District Collector considers that the resumption of land from the allottee or transferee is likely to cause undue hardship to him the District Collector shall after obtaining the approval of the Government, pay to the person who is entitled to receive the amount in respect of the land under the Act, in lieu of re-transferring the land, a sum equal to the amount as determined, in accordance with the proviso to sub-section (5) of Section 7 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Amendment Act, 1977 (Act 10 of 1977).

Sub-rule (5) renumbered as sub-rule (8) and before the sub-rule so renumbered the sub-rules (5), (6) & (7) [(5) Where, as a result of the orders passed by the Appellate Tribunal on an appeal filed under Section 20 or by the High Court on an application for revision filed under Section 21 of the Act, any land vested in the Government under Section 11 is to be re-transferred to the person who surrendered such land, the Tribunal shall pass an order to the effect that the said person is entitled to transfer of such land and it shall specify the extent of such land and also the amount, if any, to be repaid by him to the Government in respect of that land and communicate the order to the Revenue Divisional Officer.]

[added by G.O.Ms.No. 4643, Revenue (G), dated 22-10-1980 vide R.S. to Part II (Ext.) A.P. Gazette, dated 24-10-1980.]

(6)

The Revenue Divisional Officer, shall on receipt of the order of the Tribunal under sub-rule (5) ascertain whether such land has been allotted or transferred to any person and where such land has not been allotted or transferred the Revenue Divisional Officer shall issue a notice to the person who surrendered the land intimating that the land shall be re-transferred to him on repayment of the amount specified in the notice, being the amount paid to him by the Government in respect of that land within such time, as may be specified, in the notice. On such repayment, the Revenue Divisional Officer shall issue an order authorising an Officer not below the rank of a Revenue Inspector to deliver possession of the land to such person. The Revenue Inspector shall, in pursuance of the said order deliver possession of the land and furnish a certificate to the effect in Form XI-A.

(7)

(a)

In any case where the Revenue Divisional Officer has found that the land to be re-transferred has been allotted or transferred to any person he shall resume possession of the land from the transferee or allottee for being re-transferred to the person who surrendered such land and take action in accordance with the provisions of sub-rule (6) :

Provided that no possession of the land shall be resumed until after a seasonal crop on the land raised by the transferee is harvested by him.

(b)

In lieu of the land so resumed and re-transferred, the Revenue Divisional Officer shall take steps to allot or transfer to the allottee or transferee any other land vesting in the Government.]

(8)

□

[Sub-rule (5) renumbered as sub-rule(8) by G.O.Ms. No. 4643, Rev.(G), dated 22-10-1980.]

The Revenue Divisional Officer shall cause necessary changes to be effected in the relevant village accounts in respect of the lands dealt with under this rule.]

11.

Fixation of value for fruit-bearing trees and structures etc.:

(1)

The amount payable for fruit-bearing trees shall be at the seignorage rates notified by the District Forest Officer as applicable to the district from time to time and for the Tribunal may require the District Forest Officer in whose jurisdiction the land is situated to furnish an estimate of the amount payable for such trees.

(2)

The amount payable for the structures of permanent nature shall be equivalent to the depreciated value of the structure as on the specified date and for this purpose the Tribunal may require the Executive Engineer, Roads and Buildings Division, in the district to furnish an estimate of the depreciated value of such structure.

12.

Manner of payment:

(1)

A notice in Form XII shall be issued by the Tribunal to every person known or believed to be interested in the land vested in the Government for determining the amount payable under Section 15.

(2)

The notification containing particulars of lands vested and the amount payable therefor, shall be in Form XIII, and such notification shall be published in the Andhra Pradesh Gazette and shall also be affixed to the notice boards at the office of the Tribunal, the Taluk Office and the Gram Panchayat Office in whose jurisdiction the lands are situated and the fact of such publication shall also be announced by beat of tom tom in all the villages in which the lands are situated.

(3)

Where there is no claim by any person as being entitled to receive the payment or where a person entitled to receive the payment refuses to receive the amount, the Tribunal shall deposit the amount in the sub-treasury as a revenue deposit.

13.

Form of declaration to be filed by a transferor at the time of registration:

(1)

The declaration to be filed with the registering office under sub-section (1) of Section 19 shall be in Form XIV.

14.

Procedure at the sittings of Tribunal and Appellate Tribunal:

(1)

Where a Tribunal is constituted under Section 6-

(a)

the Chairman of the Tribunal shall preside at all the meetings of the Tribunal;

(b)

the Chairman of the Tribunal shall fix the date, time and place of hearing of each case;

(c)

the quorum for every meeting of the Tribunal consisting of two or three numbers shall be two including the Chairman except as otherwise provided in these rules;

(d)

all decisions of the Tribunal shall be by a majority opinion of the members present, and where the opinion is equally divided, the decision of the Chairman shall be the decision of the Tribunal;

(e)

if any member of the Tribunal other than the Chairman, is interested in any proceeding before the Tribunal, such member shall withdraw from such proceedings and if there is any doubt about the alleged interest of any member in any proceeding, the decision of the Chairman in this regard shall be the decision of the Tribunal;

(f)

where a meeting is adjourned for want of quorum and there is no quorum at the adjourned meeting also, the Chairman shall himself dispose of the business at the adjourned meeting and the decision of the Chairman in such case shall be deemed to be the decision of the Tribunal.

(2)

The provisions of sub-rule (1) shall apply in relation to an Appellate Tribunal constituted under Section 20 with the substitution of reference to the Appellate Tribunal for reference to the Tribunal.

[14A. Where no Tribunal is constituted: - Where no Tribunal has been constituted under Section 6, and if the Revenue Divisional Officer who is functioning as Tribunal under Section 3 (u) is interested in any proceeding before him the Appellate Tribunal having jurisdiction over such Tribunal may either suo motu or on an application and for reasons to be recorded in writing, transfer any proceeding before such Revenue Divisional Officer functioning as Tribunal to any other Revenue Divisional Officer functioning as Tribunal within its jurisdiction.]

[Inserted by G.O.Ms.No. 1132, Rev.(G), dated 18-10-1976.]

15.

Appeal:

(1)

Every appeal under Section 20 shall be in writing and shall bear a Court-fee stamp of Rs. 10. It shall be present in person or by an authorised agent in the office of the Appellate Tribunal [or of the Tribunal at any of the District headquarters falling within the jurisdiction of the Appellate Tribunal]

[Inserted by G.O.Ms.No. 1320(Rev), dated 11-12-1976.]

or sent by the registered post or recorded delivery with acknowledgement due addressed to the Appellate Tribunal :

Provided that no Court-fee stamp shall be affixed to any appeal filed by or on behalf of the Government.

[(1-A) Every appeal presented in the office of the Tribunal at the district head quarters under sub-rule (1) shall be transmitted by the Tribunal to the Appellate Tribunal immediately.]

[Inserted by G.O.Ms.No. 1320(Rev), dated 11-12-1976.]

(2)

Every appeal shall set forth concisely the grounds thereto and shall be accompanied by an authentic copy of the order appealed against and sufficient number of spare copies of the appeal petition, for service on the officer authorised by the Government in this behalf, the Principal Government Pleader of the district and the respondents mentioned therein.

(3)

The Appellate Tribunal shall, before hearing the appeal, give notice to the parties concerned fixing the date on which and time and place at which such appeal shall be heard. The notice shall be in Form XV and in the case of notice to respondents such notice shall be accompanied by a copy of the appeal petition. Where in any case, other than in an appeal filed by the Government, the Government are not made the respondent, the Appellate Tribunal shall, include the Government as a respondent and issue the notice to the officer authorised by the Government in this behalf and the Principal Government Pleader of the district, accompanied by a copy of the appeal, petition.

(4)

The Appellate Tribunal may, pending disposal of the appeal, stay the orders of the Tribunal or Revenue Divisional Officer appealed against.

16.

Nature of proceedings before the Tribunal:

(1)

All proceedings before the Revenue Divisional Officer, the District Collector, Tribunal or the Appellate Tribunal shall be summary and shall be governed, as far as may be, by the provisions of the Code of Civil Procedure, 1908.

(2)

Subject to the other provisions of these Rules, the Revenue Divisional Officer, the District Collector, the Tribunal and the Appellate Tribunal may regulate the proceedings before him or it in such manner as he or it may deem fit.

(3)

The hearing and enquiries by the Revenue Divisional Officer, the District Collector, the Tribunal and the Appellate Tribunal shall be in public.

(4)

All decisions of the Revenue Divisional Officer the District Collector, Tribunal and the Appellate Tribunal shall be in writing and shall set forth the reasons for the same.

(5)

The Revenue Divisional Officer, the District Collector, Tribunal and the Appellate Tribunal shall have the power:-

(a)

to make orders incidental or ancillary to the decisions of such officer or authority;

(b)

to correct any clerical or arithmetical mistakes in judgments or errors arising therein from any accidental slip or omission, either of its own motion or on the application of the parties.

(Substituted by G.O.Ms.No.403 dated 6-4-1976).

(6)

A party shall be entitled to be represented by his agent or legal practitioner in any proceedings before the Revenue Divisional Officer, the District Collector, Tribunal or Appellate Tribunal:

Provided that the Revenue Divisional Officer, the District Collector, Tribunal or the Appellate Tribunal as the case may be, may at any stage of the proceedings, require the party to appear in person.

(7)

Any person, other than a party who satisfies the Revenue Divisional Officer, the District Collector, Tribunal or the Appellate Tribunal that he has substantial interest in the matter, may at any time during the pendency of the proceedings, be permitted to appear and be heard and to adduce evidence and cross-examine witnesses.

(8)

Every notice or summons under the Act or these Rules shall be issued under the signature of the Revenue Divisional Officer, the District Collector, the Chairman of the Tribunal or Appellate Tribunal, as the case may be, or under his facsimile signature, or under the signature or facsimile signature of an officer authorised in this behalf by the Revenue Divisional Officer, the District Collector, the Chairman of the Tribunal or Appellate Tribunal, as the case may be.

(9)

Every notice or summons issued or order passed by the Tahsildar, Revenue Divisional Officer, District Collector,

Tribunal or Appellate Tribunal, as the case may be, shall be served or communicated to the persons concerned either by personal delivery to him or where the above course is not feasible, by sending it by post under the certificate of posting to his address at the last known place of residence:

Provided that where a notice, summons or order is sent under the certificate of posting, it shall be deemed to have been served on such person on the date on which it would, in the usual course of post, be received by the addressee.

(10)

In making any enquiry under the Act, the Revenue Divisional Officer, the District Collector, the Tribunal, or Appellate Tribunal, shall have the power-

(a)

to summon witnesses and call for the production of any documents, including any public record;

(B)

to examine the parties and witnesses on oath and affirmation and reduce into writing the statement made by the persons so examined to receive on affidavits and to issue commissions for examination of witnesses;

(c)

to enter upon and inspect any land, but not a dwelling house, and do any other act which in his or its opinion may be necessary for carrying out the provisions of the Act or these Rules.

(11)

Every miscellaneous application filed before the Revenue Divisional Officer, the District Collector, Tribunal or Appellate Tribunal shall bear a Court-fee stamp of one rupee.

17.

Revision to High Court:

(1)

The period for filling an application for revision to the High Court shall be For the words(30 days), the words, (90 days) substituted by [ninety days]

[G.O.Ms.No.13, Revenue (G), dated 4-1-1985 vide A.P. Gazette RS to Pt. II(Ext.), dated 5-1-1985.]

from the date of communication of the order and every such application for revision shall be a Court-fee stamp of five rupees, if the value of the proceeding to which the order sought to be received relates, does not exceed Rs. 1000 and often rupees if it exceeds Rs. 1,000.

(2)

The rules issued by the High Court, from time to time for filling applications for revisions before it shall apply mutatis mutandis to an application for revision under the Act.

18.

Sanction of Prosecutions:

(1)

Before according any sanction for prosecution under the Act, the District Collector shall, issue a show cause notice to the person who is proposed to be prosecuted giving him an opportunity or making a representation in writing, and consider such representation and where the District Collector is satisfied the prima facie the person has committed the offence wilfully and without reasonable cause or excuse and that the person should be furnished in the interest of justice, he shall accord the sanction for taking cognizance of the offence by the Court.

(2)

Every sanction for prosecution shall be in writing and shall set out the reasons for sanctioning the prosecution.

19.

Fixation of taram or bhaganna for a land for which no taram or bhaganna exists:

(1)

For fixing the taram or bhaganna in respect of a land for which no taram or bhaganna is recorded in the revenue or settlement records of the Government, or which bears a taram or bhaganna not shown in the Table under Clause 1 or Clause 2 of the First Schedule to the Act, the Tahsildar shall subject to confirmation by the Tribunal and after issue of a notice to the party affected, provisionally determine the taram or bhaganna having due regard to the taram or bhaganna of a similar land in the vicinity for which a taram or bhaganna has been specified in the said Table.

(2)

For fixing a taram or bhaganna of a land deemed to be dry or wet under the Act, but is registered as wet or dry land in

the land revenue accounts of the Government, the Tahsildar shall, subject to confirmation by the Tribunal, and after issue of a notice to the party affected, provisionally determine the same having due regard to the taram or bhaganna of a similar registered dry or wet land in the vicinity.

20.

Procedure for fixing land revenue in certain cases:

- For fixing the land revenue in respect of the land falling within any of the provisos to Explanation to the Second Schedule of the Act, the Tahsildar shall, subject to confirmation by the Tribunal, and after issue of a notice to the party affected, provisionally determine the land revenue having due regard to the land revenue payable for similar land in the vicinity.

Form I

Declaration under Section 8/18 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973

[See Rule 30]]

1. Full name of the declarant;
2. His father's or husband's name;
3. Full postal address;
4. Whether the declaration is on his own behalf or on behalf of any other person;
5. Whether the declaration relates to an individual, family unit, trust, company, firm, society, association of individuals, and his or its details;
6. If the declaration relates to family unit, details of the members of the family unit as on the specified date;

Sl. No.

Name in full

Relationship

Date of birth

Age

(1)

(2)

(3)

(4)

(5)

1

2

3

4

5

6

7

8

9

10

7. Have all details of all lands held as owner by the declarant and where the declaration is by a family unit, all the members of the family unit on the specified date, been furnished in Enclosure I ?

8. Have all details of all lands owned by others but held by the declarant and where the declaration is by a family unit, by all members of the family unit as limited owner usufructuary mortgagee, tenant, or in possession by virtue of mortgage by conditional sale or through part performance of a contract for the sale of land or otherwise on the specified date, been furnished in Enclosure II ?

9.

Have all details of all lands held by the declarant and where the declaration is by a family unit, all the members of the family unit on 24th January, 1971 but transferred whether by way of sale, gift, usufructuary montage, exchange, settlement, surrender or in any other manner whatsoever or in respect of which a trust has been created on or after that date, been furnished in Enclosure III ?

10. (a) Have details of all lands held by a member of the family unit whose marriage was dissolved or who was given in

adoption on or after 24th January, 1971, been furnished in Enclosure I, II or III ?

(b)

Also furnish the details of the dissolution of the marriage or adoption separately. The details of the land so held should be shown in Enclosure I, II or III separately against the name of the member of the family unit concerned.

11. Have all lands converted into non-agricultural lands within a period of 5 years before the notified date, been included in Enclosures I, II, III and have details of all such lands been specified in Enclosure IV ?

12. Have all lands on which there are encumbrances been included in Enclosures I, II, III and have details of such lands been specified in Enclosure V ?

13. Have details of all lands held as an owner by the declarant and where the declaration is by a family unit, all members of the family unit in any other part of India outside the State on the specified date, been furnished in Enclosure VI ?

I hereby declare that to the best of my knowledge and belief the information and particulars furnished in the form and its Enclosures I to VI is full and complete and correct and relates to the entire holding held by me/the family unit and that, the family unit, do not/does not own or hold any other lands in the State of Andhra Pradesh other than what is declared above.

Signature of the declarant.

Place:

Date :

Enclosure - I

Details of all lands held as an owner by the declarant, and where the declaration is in respect of a family unit by all members of the family unit on the specified date.

District/Taluk/Village

S.No. Sub-division

Double crop wet or single crop wet or dry

If wet, source of irrigation

Whether lanka, padugai, coconut garden, guava garden, grape garden

Extent

If in the possession of any other person limited

owner, usufructuary mortgagee, tenant or otherwise full name and address of such person

1

2

3

4

5

6

7

Total:

Place :

Date :

Signature of the Declarant

Enclosure - II

Details of all lands owned by others but held by the declarant and whether the declaration is by a family unit, by all the members of the family unit as limited owner, usufructuary mortgagee, tenant or in any other capacity on the specified date.

District/Taluk/Village

Sl. No. Sub-division

Double crop wet or single crop wet or dry

If wet, source of irrigation

Whether lanka, padugai, coconut garden, guava

garden, grape garden

Extent

Full name and address of the owners

In What capacity held

1

2

3

4

5

6

7

8

Place :

Date :

Signature of the Declarant

Enclosure - III

Details of all lands held as owner by the declarant, and where the declaration is on behalf of family unit, by all members of the family unit on 24th January, 1971 but transferred whether by way of sale, gift, usufructuary mortgage, exchange settlement, surrender or in any other manner whatsoever or in respect of which a trust has been created on or after that date

District/Taluk/Village

Sl. No. Sub-division

Double crop wet or single crop wet or dry

If wet, source of irrigation

Whether lanka, padugai, coconut garden, guava

garden, grape garden

Extent

Date of transfer creation of trust, full name and address, of the transferee and details of registration of document of transfer etc., and detailed reasons for such transfer etc.

1

2

3

4

5

6

7

Total:

Place :

Date :

Signature of the Declarant

Enclosure - IV

District/Taluk/Village

S.No. Sub-division

Whether double crop wet or single crop wet or dry

before conversion

Extent

Nature and date of conversion

1

2

3

4

5

Total:

Place:

Date:

Enclosure - V

Details of all lands included in Enclosure I, II or III and on which there are encumbrances

District/Taluk/Village

S.No. Sub-division

Double crop wet or single crop wet or dry

Extent

Nature of the encumbrance and details of
registered document, if any

Full Name and address of the person interested

1

2

3

4

5

6

Total:

Place :

Date :

Signature of the Declarant

Enclosure - VI

Details of all lands held as an owner by the declarant, and where the declaration is by a family unit by all the members of
the family unit in any other part of India outside the State as on the specified date.

State/Dist./Taluk Village

S. No. Sub-Division

Double Crop wet or single crop wet or dry

Extent

Whether any declaration filed under any law
relating to the ceiling on agricultural holdings in that State
and if so, the date of such declaration.

(1)

(2)

(3)

(4)

(5)

Total:

Place:

Date:

Signature of the Declarant.

Note:- 1. For definition of double crop wet land see Sec. 3(d) of the Act.

2. For definition of family unit see Sec. 3(f) of the Act.

3. For definition of 'wet' land see Sec 3(v) of the Act, 'Single crop wet land' is wet land other than double crop wet.

4. In the case of a family unit, all the particulars in each Enclosure shall be furnished in three parts as follows:-

Part I ? . Lands held by or falling to the share of the adult male member or members of the family unit (name(s)).

Part II ? . Lands held by or falling to the share of the adult female member or members of the family unit (name(s)).

Part III ? . Lands held by or falling to the share of minor sons or unmarried minor daughters of the family unit including the off-spring of minor sons (Names)

5. All the lands held by a person including a member of the family unit separately shall be declared together with the share to which such person or member of the family unit is entitled to in the lands held by a joint family by a Co-operative society, a company, a firm, as the case may be.

6. If a person is the author of a recoverable private trust, the lands owned or held by such private trust shall be declared by that person as his own lands.

7. If a person is a beneficiary of a non-recoverable private trust, such person shall declare that portion of the land which is relatable to his interest in such trust or the income derived therefrom as his own lands.

8. Where a trust is partly private and partly public, the lands covered by that of the trust which is relatable to the private trust shall be declared as his own by the person creating the trust or the beneficiaries, as the case may be.

9. Declaration shall be furnished in triplicate, where a declaration is in respect of a holding comprising lands in more than one taluk, an additional copy for each taluk shall be filed.

Form II

[See Rule 3(2)]

In the office of the Land Reforms Tribunal

Receipt

Received in person/through authorised agent by/post from Shri/Smt..... on behalf of on
(date) a declaration with Enclosures I to VI filed under Section 8/18 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973. The declaration relates to an Individual/Family Unit/Trust/Company/Firm/Society by Association of individuals.

The ceiling case number assigned to this declaration in C.C.No.(.....Taluk)

Place:

Date:

Signature of the Officer receiving the declaration in the Office of the Tribunal.

Note:- Strike out which is not applicable.

Form III

[See Rule 3(4)]

In the Office of the Land Reforms Tribunal

Notice

To

Shri/Smt

Under sub-section (2) of Section 8 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973, you are hereby required to furnish to the Tribunal on or before (date), a declaration (in triplicate) in Form I under the rule containing full and correct particulars of the lands held by you, by the family unit, as on the specified date under the Act, failing which you will render yourself liable to prosecution under Section 24 of the Act.

(By order of the Tribunal)

Place:

Date:

Signature of the Officer authorised by the Tribunal.

Reference No.

Forwarded in duplicate through the Tahsildar of for causing service, obtaining acknowledgement and returning the served notice.

Form IV

[See Rule 4(2)]

In the office of the Land Reforms Tribunal.....

C.C.No.....

Public Notice

Notice is hereby given that declarations have been received from the persons noted in the Schedule below (or information has been obtained that the lands specified in the Schedule are held on the specified date under the Andhra

Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 by the persons shown therein. The said declarations or information are kept in the Office of the Tribunal for public inspection on any working day in the presence of an officer authorised by the Tribunal.

Any person having any objection concerning the Schedule land may file his objections in writing supported by a summary of evidence and copies of documents relied on, before the Tribunal within fifteen days from the date of publication of this notice. Objections received within the time will be enquired into on such date as the Tribunal may fix and communicate to the declarant and the objector. The objector will be at liberty to appear in person or by Pleader and to adduce oral or documentary evidence in support of the objections at the time of enquiry.

(By Order of the Tribunal)

Place:

Date:

Signature of the Officer authorised by the Tribunal.

Note: - Date to be specified should not be less than fifteen days from the date of communication of the notice.

Copy to the Notice Board of the office of the Tribunal.

Copies to the Tahsildar of for publication on the notice board of his office, the office of the Gram Panchayat in whose jurisdiction the lands are situated and for announcing the fact of such publication by beat of tom tom in all the villages in which lands are situated and for returning a copy with a certificate of such publication.

Copy to the Officer authorised by the Government in this behalf with copies of declarations referred to in Schedule.

Schedule

Name of declarant or the person in respect of whose
holding information has been obtained

Case No. Date of receipt

Total number of members of the family unit

Taluk/village

S.No./Sub-divn.

Wet or dry

Extent

In what capacity held.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Form V

[See Rule 6(1)]

In the Office of the Land Reforms Tribunal

C.C.No.

To,

Take notice that an enquiry under Section 9 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 in respect of the declaration of holdings furnished by you/the information obtained of your holdings as shown in the schedule attached will be held on (date) at (Place) (Time) for the purpose of determining whether the extent of land which is held by you is in excess of the ceiling area, and that you may appear before the Tribunal on that date and make any representation, oral or written and adduce such evidence as you may consider necessary, failing which an ex-parte order will be passed on the material available.

2. A copy of the verification report on your declaration is furnished herewith.

(By Order of the Tribunal)

Place:

Date:

Signature of the Officer authorised by the Tribunal.

Forwarded to the Tahsildar of along with a copy of the verification report, for causing service of the notice and delivery of the report, and return of the served copy of the notice before the date of hearing.

Copy to Shri who has filed an objection in response to the public notice issued on /or who is interested.

Copy to the Officer authorised by the Government to receive such notices.

Note:- Attach a schedule of lands in a case whose information has been obtained by the Tribunal under Section 8(3) of the Act.

Form VI

[See Rule 7(1)]

In the Office of the Land Reforms Tribunal

C.C.NO.

To

.....

Under Section 9 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 an extent of the land equivalent to.....standard holding, is determined as held by you in excess of the ceiling area which you are liable to surrender under Section 10(1) of the Act.

You are hereby required under sub-section (2) of Section 10 of the said Act to file on or before*.....(date) a true and correct statement showing the location, description and other particulars of the land (as in the Form appended to this notice) which you propose to surrender, failing which the lands held in excess of the ceiling area and liable to be surrendered will be selected by the Tribunal under sub-section (4) of Section 10 of the said Act.

Your particular attention is drawn to sub-section (5) and Explanation I of Section 10 of the said Act in regard to the surrender of the lands held by you in excess.

(By Order of the Tribunal)

Place:

Date :

Signature of the Officer authorised by the Tribunal.

Forwarded to the Tahsildar of for causing service of the notice and return of the served copy of the notice.

Copy to the Officer authorised by the Government to receive such notices.

*Note:- The date to be specified should be not less than fifteen days from the date of communication of the notice.

Forms in which particulars of lands proposed to be surrendered shall be furnished

Taluk/Village

S.No. Sub-Divn.

Double Crop wet or single crop wet or dry

If wet, source or irrigation

Whether lanka, padugai, coconut garden, guava garden or grape garden

Extent

Are there fruit bearing trees or permanent structures on the land. If so, the particulars thereof

Remarks

1. Is it converted into non-agricultural land and rendered unfit for purposes of agriculture; 2. Is there any dispute as to the title to the land; 3. Is there any encumbrance on the land (by way of mortgage, tenancy or otherwise); 4. Is the land in the possession of a limited owner, or any person by virtue of mortgage by conditional sale or through part performance of a contract for the sale of the land otherwise; 5. Is it inaccessible after severance from the rest of the holding.

1

2

3
4
5
6
7
8

Note:- (1) In the case of surrender by a family unit, the lands proposed to be surrendered by each member of the family unit, shall be exhibited separately under the full name of each member. Full details and names and addresses of the parties in respect of item (2), (3) or (4) of column (8) should be indicated against the S.No. in remarks column:

Single crop wet land means wet land other than double crop wet.

(2)

[Where any land not being the whole of any land in a survey number or sub-division or any land in any un-surveyed area is proposed to be surrendered, a sketch drawn to scale showing the full measurements of the land and the boundaries thereof shall be filed in duplicate.]

[(Added Vide G.O.Ms.No. 459, dated 22-4-1975.)]

Form VII

[See Rule 7(3)]

In the Office of the Land Reforms Tribunal

C.C.No.

Notice

To

Whereas the Tribunal proposes to refuse to accept the surrender of lands proposed to be surrendered by you in your statement dated.....the details of which are given in the schedule below, for the reasons noted against them. Now therefore, you are hereby required to file a statement showing the full details and particulars of any other lands which you will surrender in lieu thereof on or before.....(date)

(By Order of the Tribunal)

Place:

Date:

Signature of the Officer authorised by the Tribunal.

Forwarded to the Tahsildar of.....for causing service of the notice and returning the served copy of the notice.

Copy to the Officer authorised by the Government to receive such notices.

Schedule 2

Taluk/Village

S.No./S.D. No.

Wet or dry

Extent

Reason for non-acceptance of the surrender

(1)

(2)

(3)

(4)

(5)

Form VIII

[See Rule 7 (4)]

In the Office of the Land Reforms Tribunal.....

C.C.No.

Public Notice

Notice is hereby given that the lands specified in the schedule below are proposed to be surrendered or selected for surrender under Section 10 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 and the Tribunal has provisionally approved such surrenders.

Any person having any objection concerning the schedule lands may file his objections in writing supported by a

summary of evidence and copies of documents relied on, before the Tribunal within fifteen days from the date of publication of this notice. All objections received within the time shall be considered by the Tribunal thereafter.

(By Order of the Tribunal)

Place:

Date :

Signature of the Officer Authorised by the Tribunal.

Copies to the Tahsildar.....for publication of the notices on the notice board of his office, the offices of the Gram Panchayats in whose jurisdiction the lands are situated and for announcing the fact of such publication by beat of tom tom in all the villages in which the lands are situated and for returning a copy with a certificate of such publication.

Copy to the notice board of the Tribunal.

Copy to the Officer authorised by the Government to receive such notices.

Schedule 3

Name of the declarant of the person in respect of whose holding information has been obtained.

Ceilling case No.

Taluk village

S. No. Sub-division

Wet or Dry

Extent

Name of the person surrendering the land.

1

2

3

4

5

6

7

Form IX

[See Rule-8(1)]

In the Office of the Revenue Divisional Officer Reference No.....

Order to take possession of the lands surrendered or deemed to be surrendered under Section 11 of the Act.

To

Shri/Smt.

The Land Reforms Tribunal.....in its order, dated.....in C.C.No.....finally ordered the.....surrender of the lands specified in the schedule below as they are held by you in excess of the ceiling area under the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 which shall vest in the Government, free from all encumbrances, from the date of this order to take possession.

You are hereby directed to deliver possession of the same to.....(designation of the Officer) on or before the.....date of.....month of.....198, failing which the officer specified above shall take possession of the lands at any time thereafter by using such force as may be necessary to remove any obstruction that may be caused :

If there is a seasonal crop on the ground as on the date of taking possession you are hereby allowed to harvest the crop at the appropriate time at your risk and you will not be allowed any compensation from the Government for any loss or damage to the crop, under any circumstances.

(As. amended in G.O.Ms.No. 1812 Revenue (G), dated 27th October, 1978)

Place:

Date:

Signature of the Revenue Divisional Officer

Copy to the Tahsildar of.....for causing service of the order.....and returning the served copy.

Copy to.....He is authorised to take possession of the.....scheduled lands and report compliance to the Tahsildar and to this Office and Tribunal.

Schedule 4

Taluk/Village.

S.No./Sub-division

Wet or Dry

Extent

Name of the person bound to surrender the land.

(1)

(2)

(3)

(4)

(5)

Form X

[See Rule 8(3), (4) and (5)]

Certificate for taking possession

(In Triplicate)

With reference to the order of the Revenue Divisional Officer.....in his reference No. I, authorised by the Revenue Divisional Officer, hereby certify that I have taken possession of the lands described in the Schedule below on the (date).

Schedule 5

Taluk/village.

S.No./S.D. No.

Wet or Dry

Extent.

Name of the person from whom possession of the land
has been taken

(1)

(2)

(3)

(4)

(5)

Place:

Date :

Signature of the Officer taking possession

Name, address and signature of Witnesses:

1.

2.

Form XI

[See Rule 9(4)]

Certificate of delivery of possession to the owner

(In Triplicate)

With reference to the order of the Revenue Divisional Officer.....in his reference No.Dated..... I,authorised by the Revenue Divisional Officer to take possession of the lands described in the Schedule below and to deliver the same to the owner or to the person having a vested interest in the remainder, certify that I have possession of the same and delivered the same to the owner or to the person having a vested interest in the remainder accordingly on(date)(Amended by G.O.Ms.No. 611, Dated 25-5-1977).

Schedule 6

District/Taluk/Village

Sl. No. Sub-division

Double crop wet or single crop wet or dry

If wet, source of irrigation

From whom possession is taken

Owner to whom possession has been delivered.

1
2
3
4
5
6

Signature of the Officer delivering the possession

Place:

Date:

Name, address and signature of the Witnesses:

1.
2.

Signature of the person to whom possession is delivered

Form XI-A

[Form XI-A inserted by G.O.Ms.No. 611, Revenue (G), dated 25-5-1977.]

[See rule 10-A (2) and (6)]

Certificate of delivery of possession of the re-transferred land (In Triplicate)

C.C.No.

With reference to the order of the Revenue Divisional Officer,in his reference No.,datedI
.....authorised by the Revenue Divisional Officer, certify that I have delivered possession of the re-transferred land
mentioned in the Schedule below to Sri.....on the.....(date).

The Schedule

Taluk/village.

S.No./S.D. No.

Wet or Dry

Extent.

Name of the person from whom possession of the land
has been delivered.

(1)
(2)
(3)
(4)
(5)

Place:

Date:

Signature of the officer delivering possession.

Signature of the person to whom possession is delivered.

Name, address and signature of the witnesses:

1.
2.

Form XII

[See Rule 12(1)]

In the office of the Land Reforms Tribunal.....

C.C.No.....

Notice

Notice is hereby given to the persons mentioned in the Schedule below that under Section 16 of the Andhra Pradesh
Land Reforms (Ceiling on Agricultural Holdings) Act, 1973, the Tribunal proposes to determine the amount payable for
the lands specified in the schedule below, under Section 15 of the Act.All the persons having any interest in the lands
may appear before the Tribunal and make any plea regarding the determination of the amount on(date)
at.....(place) at.....(time) and for this purpose adduce such evidence as they may so desire.

(By order of the Tribunal)

Place:

Date:

Signature of the Officer authorised by the Tribunal.

Copies to the Tahsildar of.....for causing service of the notice on all the persons known or believed to be interested in the land and return of the served copy of the notice before the date of hearing.

Copy to the Officer authorised by the Government to receive such notices.

Schedule 7

Taluk/Village.

S.No./S.D.No.

Wet or Dry

Extent

Probable amount payable

Names of persons known or believe to be interested in the land.

(1)

(2)

(3)

(4)

(5)

(6)

Form XIII

[See Rule 12(2)]

In the Office of the Land Reforms Tribunal.....

C.C.No.....

Notification

Notice is hereby given that the lands mentioned in the Schedule below have vested in the Government under Section 11 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973. All persons having any interest in the said lands may file a claim for the amount due to them from out of the amount payable for the lands within thirty days from the date of publication of this notification in the Andhra Pradesh Gazette.

(By Order of the Tribunal)

Place:

Date :

Signature of the Officer authorised by the Tribunal

Copies to the Tahsildar of.....for publication of the notice on the notice board of this office, the offices of the Gram Panchayats in whose jurisdiction the lands are situated and for announcing the fact of such publication by beat of tom-tom in all the villages in which the lands are situated and for returning a copy with a certificate of such publication.

Copy to the notice board of the Office of the Tribunal.

Copy to the Tahsildar

Copy to the Director of Printing, Hyderabad for causing publication of the notice in an ordinary/extraordinary issue of the Andhra Pradesh Gazette and intimating the fact of publication to the Tribunal.

Schedule 8

Name of the declarant or person in respect of whose holding information has been obtained.

Ceiling Case No.

Taluk/Village

S.No. S.D. No.

Wet or Dry

Extent

Name of the owner of the lands

Amount determined as payable for the lands.

(1)

(2)
(3)
(4)
(5)
(6)
(7)
(8)

Form XIV

(See Rule 13)

Declaration

(In Duplicate)

Under sub-section (1) of Section 19 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 read with Rule 13 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Rules, 1974, Ihereby declare to the best of my knowledge and belief that my holding the particulars of which are given in the schedule below, does not exceed the ceiling area under the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973.

I further declare that the holding of all the members of the family unit of which I am a member, do not in the aggregate exceed the said ceiling area.

I further declare that my holdings consist of the lands described in the schedule hereunder and it does not include any other land.

I also declare that the holdings of all the members of the family unit of which I am a member consist of the lands described in the schedule and that the holdings do not include any other land.

Place:

Date:

Signature of the Transferor.

Schedule 9

Name of the person/member of a family unit (in the case of a member of the family unit given the relationship]

District/taluk/village

S.No. /S.D. No.

Wet or Dry

Extent

Remarks

(1)
(2)
(3)
(4)
(5)
(6)

Part A.....Part B.....

.....

Note (1):- This schedule shall be prepared in two parts as indicated below:-

Part A ? shall contain details of lands held by the transferor.

Part B ? shall contain details of lands held by the other members of the family unit if the transferor is a member of a family unit.

Note (2):- All the lands held by a person including a member of the family unit shall be declared together with the share to which such persons or member of the family unit is entitled to in the lands held by a joint family, a Co-operative society, a company or a firm as the case may be.

Place:

Date:

Signature of the Transferor.

Form XV

[See Rule 15 (3)]

In the Office of the Land Reforms Appellate Tribunal.....

Appeal Case No.....

To

.....

Take notice that an appeal has been filed under sub-section (3) of Section 20 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 against the orders of the Revenue Divisional Officer/the Tribunal.....in.....and you are mentioned as a party to the said appeal.

The appeal will be heard on.....(date) at.....(Place) at.....(Time) and you may appear at the said hearing and represent your case in person or by an agent or pleader failing which the appeal will be heard and decided ex-parte. A copy of the appeal petition is enclosed.

(By Order of the Appellate Tribunal)

Place:

Date:

Signature of the Officer authorised by the Appellate Tribunal.

Copy to Shri

(Appellant)

Forwarded to the Tahsildar of.....for causing service of the notice and the appeal petition and returning the served copy of the notice and the appeal petition enclosed thereto before the date of hearing.

Copy to the Officer authorised by the Govt. in this behalf (with a copy of the appeal petition)

Copy to the Principal Government Pleader of....., dated (with a Copy of the the appeal petition).

Table I

Conversion factors for guntas to cents

Guntas

Cents

Guntas

Cents

Guntas

Cents

Guntas

Cents

1

3

11

28

21

51

31

78

2

5

12

30

22

55

32

80

3

8

13

33
23
58
33
83
4
10
14
35
24
60
34
85
5
13
15
38
25
63
35
88
6
15
16
40
26
65
36
90
7
18
17
43
27
68
37
93
8
20
18
45
28
70
38
95
9
23
19
48
29
73

39
98
10
25
20
50
30
75
40
100
Or
1 Acr
Table II
Conversion factors for extents in acres and cents to Standard Holdings of Classes "A" to "F" of double crop wet lands.
A
B
C
D
E
F
Acres
(10)
(12)
(13.50)
(15)
(16.50)
(18)
.01
.001
.0008
.0007
.0007
.0006
.0006
.02
.002
.0017
.0015
.0013
.0012
.0011
.03
.003
.0025
.0022
0022
.0018
.0017
.04
.004
.0033

.0030
.0027
.0024
.022
.05
.005
.0042
.0037
.0033
.0030
.0028
.06
.006
.0050
.0044
.0040
.0036
.0033
.07
.007
.0058
.0052
.0047
.0042
.0039
.08
.008
.0067
.0059
.0053
.0048
.0044
.09
.009
.0075
.0067
.0060
.0055
.0050
.1
.01
.0083
.0075
.0067
.0061
.0056
.2
.02
.0167
.0148
.0133

.0121
.0111
.3
.03
.0250
.0222
.0200
.0182
.0167
.4
.04
.0333
.0299
.0267
.0242
.0222
.5
.05
.0417
.0370
.0333
.0303
.0278
.6
.06
.0500
.0444
.0400
.0364
.0333
.7
.07
.0583
.0519
.0467
.0424
.0381
.8
.08
.0667
.0593
.0533
.0485
.0444
.9
.09
.0757
.0667
.0600
.0545
.0500

1
.1
.0833
.0741
.0667
.0606
.0556
2
.2
.1667
.1481
.1383
.1212
.1119
3
.3
.2500
.2222
.2000
.1818
.11667
4
.4
.3333
.2963
.2667
.2424
.2222
5
.5
.4167
.3704
.3333
.3030
.2778
6
.6
.5000
.4444
.4000
.3636
.3333
7
.7
.5833
.5185
.4667
.4242
.3889
8
.8

.6667
 .5926
 .5333
 .4848
 .4444
 9
 .9
 .7507
 .6667
 .6000
 .5457
 .5000
 10
 1.0
 .8333
 .7407
 6667
 .6061
 .5556
 Table III
 Conversion factors for extents in acres and cents to standard holdings of double-crop wet lands of Classes A to F (See Proviso (1) to sub-section (1) of Section 5 of the Act i.e., lands covered by part II of Schedule 'C' appended to draft rules of localisation for Godavari delta after taking into account the enhancement of the extent of standard holding of each class by 12-1/2%.
 Acres
 A
 B
 C
 D
 E
 F
 (11.25)
 (13.50)
 (15.19)
 (16.88)
 (18.56)
 (20.25)
 .01
 .0009
 .0007
 .0007
 .0006
 .0005
 .00005
 .02
 .0018
 .0015
 .0013
 .0012
 .0011
 .0010

.03
.0027
.0022
.0020
.0018
.0016
.0015
.04
.0036
.0030
.0026
.0024
.0022
.0020
.05
.0044
.0037
.0033
.0030
.0027
.0025
.06
.0053
.0044
.0039
.0036
.0032
.0030
.07
..0062
.0052
.0046
.0041
.0038
.0035
.09
.0080
.0067
.0059
.005.
.0048
.0044
.1
.0089
.0074
.0066
.0059
.0054
.0049
.2
.0178

.0148
.0132
.0118
.0108
.0099
.3
.0267
.0222
.0197
.0178
.0162
.0148
.4
.0356
.0296
.0263
.0237
.0216
.0198
.5
.0444
.0370
.0329
.0296
.0269
.0247
.6
.05..
.0444
.0395
.0355
.0323
.0296
.8
.0711
.0593
.0592
.0533
.0485
.0395
.9
.0800
.0667
.592
.0533
.0485
.0444
1.
.0889
.0741
.0658

.0592
.0531
.0494
2.
.1778
.1481
.1317
.1185
.1078
.0988
3.
.2667
.2222
.1975
.1777
.1616
.1481
4.
3556
.2963
.2633
.2370
.2155
.1972
5.
.444
.3704
.3292
.2962
.2694
.2496
6.
.5333
.4444
.3950
.3555
.3233
.2963
7.
6222
.5222
.5185
.4147
.3772
.3457
8.
.7111
.5926
.5260
.4739
.4310

.3951
 9.
 .8000
 .6677
 .5925
 .5332
 .4849
 .4444
 10.
 8889
 .7407
 .6583
 .5624
 .5388
 .4938
 Table IV
 Conversion factors for extents in acres and cents to Standard Holdings of double crop wet lands of Classes A to F and irrigated solely by Private Tube Wells [See proviso (ii) to sub-section (1) of Sec. 5 of the Act' after taking into account the enhancement of the extent of standard holding by 25% so however that the said extent shall in no case exceed 7.28 hectares i.e. 81 acres.
 A
 B
 C
 (D, E & F)
 Acres
 (12.50)
 (15.00)
 (16.88)
 (18.00)
 .01
 .0008
 .0007
 .0006
 .0006
 .02
 .0016
 .0013
 .0012
 .0011
 .03
 .0024
 .0020
 .0018
 .0017
 .04
 .0032
 .0027
 .0024
 .0022
 .05
 .0040

.0033
.0030
.0028
.06
.0048
.0040
.0036
.0033
.07
.0056
.0047
.0041
.0039
.08
.0064
.0053
.0047
.0044
.09
.0072
.0060
.0053
.0050
.1
.0080
.0067
.0059
.0056
.2
.0160
.0133
.0188
.0111
.3
.0240
.0200
.0178
.0167
.4
.0320
.0267
.0237
.0222
.5
.0400
.0333
.0290
.0277
.6
.0480
.0400

.0355
.0333
.7
.0560
.0467
.0415
.0389
.8
.0640
.0533
.0474
.0444
.9
.0720
.0600
.0533
.0500
1.
.0800
.0667
.0592
.0556
2.
.1600
.1333
.1185
.1111
3.
2400
.2000
.1777
.1667
4.
3200
.2667
.2370
.2222
5.
.4000
.3332
.2962
.2778
6.
.4800
.4000
.3555
.3333
7.
.5600
.4667
.4147

.3889
 8.
 .6400
 .6000
 .5332
 .5000
 9.
 .7200
 .6000
 .5332
 .5000
 10.
 .8000
 .6667
 .5924
 .5556
 Table V
 Conversion Factors for Extents in acres and cents to standers holdings of single crop wet of Clases A to F
 Acres.
 A
 B
 C
 D
 E
 F
 (15)
 (18)
 (20)
 (22.5)
 (25)
 (27)
 .01
 .0007
 .0006
 .0005
 .0004
 .0004
 .0004
 .0004
 .02
 .0013
 .0011
 .0010
 .0009
 .0008
 .0007
 .03
 .0020
 .0017
 .0015
 .0013
 .0012

.0011
.04
.0027
.0022
.0020
.0018
.0016
.0015
.05
.0033
.0028
.0025
.0022
.0020
.9019
.06
.0040
.0033
.0030
.0027
.0024
.0022
.07
.0047
.0039
.0035
.0031
.0088
.0026
.08
.0053
.0044
.0040
.0036
.0032
.0030
.09
.0060
.0050
.0045
.0040
.0036
.0033
.10
.0067
.0056
.0050
.0044
.0040
.0037
.20

.0133
.0111
.0100
.0089
.0080
.0074
.40
.0267
.0222
.0200
.0168
.0160
.0148
.50
.0333
..278
.0250
.0222
.0200
.0185
.60
.0400
.0333
.0300
.0267
.0240
.0222
.70
.0467
.0389
.0350
.0311
.028
.0259
.80
.0533
.0444
.0400
.0356
.0320
.0296
.90
.0300
.0500
.0450
.0400
.0360
.0333
1.
.0667
.0556

.0500
.0442
.0400
.0370
2.
.1333
.1111
.1000
.0889
.0800
.0741
3.
.2000
.1667
.1000
.0889
.0800
.0741
4.
.2667
.2222
.2000
.1778
.1600
.1481
5.
3333
.2778
.2500
.2222
.2000
.1852
6.
.4000
.3333
.3000
.2667
.2400
.2222
7.
.4667
.3889
.3500
.3111
.2800
.2593
8.
.5333
.4444
.4000
.3556

.3200
 .2963
 9.
 .6000
 .5000
 .4500
 .4000
 .3600
 .3333
 10.
 6667
 .5556
 .5000
 .4444
 .4000.
 3704
 Table VI
 Conversion factors for extents in acres and cents to standard holdings of single crop wet lands of Classes A to F irrigated by Class - V Government sources-'See proviso (iii) to sub-section (1) of Section 5 of the Act] after taking into account the enhancement of extent of standard holding by 16-1/2%.
 Acres
 A
 B
 C
 D
 E
 F
 (17.44)
 (20.93)
 (23.25)
 (26.16)
 (29.06)
 (31.39)
 .01
 .0003
 .0005
 .0004
 .0004
 .0003
 .0003
 .02
 .0011
 .0010
 .0009
 .0008
 .0007
 .0006
 .03
 .0017
 .0017
 .0013

.0011
.0010
.0010
.04
.0023
.0019
.0017
.0015
.0014
.0013
.05
.0023
.0024
.0022
.0019
.0017
.0016
.06
.0034
.0029
.0023
.0023
.0021
.0019
.07
.0040
.0033
.0027
.0027
.0024
.0022
.08
.0046
.0038
.0034
.0031
.0028
.0025
.09
.0052
.0043
.0039
.0034
.0031
.0029
.140
.0057
.0048
.0043
.0038
.0034

.0032
.20
.0115
.0096
.0086
.0076
.006
.0064
.30
.0172
.0143
.0129
.0115
.0103
.0096
.40
.0229
.0191
.0172
.0153
.0138
.0127
.50
.0287
.0239
.0215
.0191
.0172
.0156
.60
.0344
.0287
.258
.229
.0222
.0191
.70
.0401
.0334
.0304
.0268
.024
.003
.80
.0459
.0382
.0344
.0306
.0275
.0255
.90

.0516
.0430
.0384
.0344
.0310
.0287
1.
.0573
.0478
.0430
.0382
.0344
.0319
2.
.1147
.0956
.0860
.0765
.0688
.0637
3.
.1720
.1423
.1290
.1147
.1032
.0956
4.
.2294
.1911
.1720
.1529
.1376
.1274
5.
.2867
.2386
.2151
.1911
.1721
.1523
6.
.3440
.2867
.2581
.2294
.2065
.1911
7.
.4017
.3344

.3011
 .2676
 .2409
 .2230
 8.
 .4581
 .3722
 .3441
 .308
 .2753
 .2549
 9.
 .5161
 .4400
 .3871
 .3440
 .3007
 .2867
 10.
 5734
 .4778
 .4301
 .3823
 .3441
 .3186
 Table VII
 Conversion factors for extents in acres and cents to standard holdings of dry lands of Classes G to K.
 Acres
 G
 H
 I
 J
 K
 (35)
 (40)
 (45)
 (50)
 (54)
 .01
 .0003
 .0003
 .0002
 .0002
 .0002
 .02
 .0006
 .0005
 .0004
 .0004
 .0004
 .03

.0009
.0008
.0007
.0006
.0006
.04
.0011
.0010
.0009
.0008
.0007
.05
.0014
.0013
.0011
.0010
.0009
.06
.0017
.0015
.0013
.0012
.0010
.07
.0020
.0018
.0016
.0014
.0013
.08
.0023
.0020
.0018
.0016
.0015
.09
.0026
.0023
.0020
.0018
.0017
.10
.0029
.0025
.0022
.0020
.0019
.20
.0057
.0050
.0044

.0040
.0037
.30
.0086
.0075
.0067
.0060
.0056
.40
.0114
.0110
.0089
.0080
.0074
.50
.0143
.0125
.0111
.0100
.0093
.60
.0171
.0150
.0133
.0120
.0111
.70
.0200
.0175
.0156
.0140
.0130
.80
.0229
.0200
.0178
.0160
.0148
.90
.0257
.0225
.0200
.0180
.0167
1.
.0286
.0250
.0222
.0200
.0185
2.

.0571
.0500
.0444
.0400
.0370
3.
.0857
.0750
.0667
.0600
.0556
4.
.1143
.1000
.0889
.0800
.0741
5.
.1429
.1250
.1111
.1000
.0926
6.
.1714
.1500
.1333
.1200
.1111
7.
.2000
.1750
.1556
.1400
.1296
8.
.2286
.2000
.1778
.1600
.1481
9.
.2571
.2250
.2000
.1800
.1667
10.
.2857
.2500
.2222

.2000

.1852

Table VIII

Conversion factors for extents in acres and cents to standard holdings of dry lands of Classes G to K in Drought Prone Areas [See proviso (iv) to sub-section (1) of Section 5 of the Act] after taking into account enhancement of the extent of the standard holdings by 12-1/2% or 20% as the case may be.

Acres

G

H

I

J

K

-(39)

(45)

(54)

(60)

(65)

.01

.0003

.0002

.0002

.0002

.0002

.0002

.02

.0005

.0004

.0003

.0003

.0003

.03

.0008

.0007

.0006

.0005

.0005

.04

.0010

.0009

.0007

.0007

.0006

.05

.0013

.0011

.0009

.0008

.0008

.06

.0015

.0013

.0011

.0010
.0009
.07
.0018
.0016
.0013
.0012
.0011
.08
.0020
.0018
.0015
.0013
.0012
.09
.0023
.0020
.0017
.0015
.0014
.1
.0025
.0022
.0019
.0017
.0015
.2
.0051
.0044
.0037
.0033
.0031
.3
.0076
.0076
.0056
.0050
.0046
.4
.0102
.0089
.0074
.0067
.0062
.5
.0127
.0111
.0093
.0083
.0077
.6

.0152
.0133
.0111
.0100
.0093
.7
.0178
.0156
.0130
.0117
.0108
.8
.0203
.0178
.0141
.0133
.0123
.9
.0229
.0200
.0167
.0150
.0139
1.
.0254
.0222
.0185
.0167
.0154
2.
.0508
.0444
.0370
.0333
.0309
3.
.0762
.0667
.0556
.0500
.0463
4.
.1016
.0889
.0741
.0667
.0617
5.
.1270
.1111
.0926

.0833
 .0772
 6.
 .1524
 .1333
 .1111
 .1000
 .0926
 7.
 .1778
 .1556
 .1296
 .1167
 .1080
 8.
 .2031
 .1778
 .1481
 .1333
 .1235
 9.
 .2285
 .2000
 .1667
 .1500
 .1389
 10.
 .2539
 .2222
 .1852
 .1667
 .1543
 Table IX
 Conversion factors for extents in acres and cents to standard holdings of lands which are lankas or padugais or on which coconut gardens or grape gardens or guava gardens are raised [see proviso (iv) to sub-section (1) of Section 5 of the Act]
 Acres
 Lankas or Padugais or Coconut gardens or Grape gardens, or Guava Gardens,(27.00)
 .01
 .0004
 .02
 .0007
 .03
 .0011
 .04
 .0015
 .05
 .0019
 .06
 .0022

.07
.0026
.08
.0030
.09
.0033
.1
.0037
.2
.0074
.3
.0111
.4
.0148
.5
.0185
.6
.0222
.7
.0259
.8
.0296
.9
.0333
1.
.0370
2.
.0741
3.
.1111
4.
.1481
5.
.1852
6.
.2222
7.
.2593
8.
.2963
9.
.3333
10.
.3704

Note:- This table would apply only if the class of land has standard holding exceeding 27 acres.

Notifications

1. Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Act

1 of 1973

) - Section 20 - Full time Land Reforms Appellate Tribunals one each in the Districts of East Godavari, West Godavari, Warangal, Nalgonda, Karimnagar and Ranga Reddy - Re-designation as Additional District and Sessions Courts of their respective Districts - Proposals.

[GO.Ms.No. 793, Revenue (Land Reforms), dated 3-12-1995]

In exercise of the powers conferred by sub-section (1) of Section 20 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Act

No. 1 of 1973

) and in supersession of all previous notifications issued in this behalf, the Governor of Andhra Pradesh hereby re-designate the following Land Reforms Appellate Tribunals mentioned in Column (1) of the Table below as shown in corresponding column (2) of the said Table with immediate effect.

Column (1)

Column (2)

1.

Chairman, Land Reforms Appellate Tribunal, Kakinada.

1.

Chairman, Land Reforms Appellate Tribunal, Kakinada-cum-IV
Additional District and Sessions Court, East Godavari District at
Kakinada.

2.

Chairman, Land Reforms Appellate Tribunal, Eluru.

2.

Chairman, Land Reforms Appellate Tribunal, Eluru-cum-II
Additional District and Sessions Court, West Godavari at Eluru.

3.

Chairman Land Reforms Appellate Tribunal, Karimnagar

3.

Chairman, Land Reform Appellate Tribunal, Karimnagar-cum-III
Additional District and Sessions Court, Karimnagar.

4.

Chairman, Land Reforms Appellate Tribunal, Nalgonda.

4.

Chairman, Land Reforms Appellate Tribunal, Nalgonda-cum-II
Additional District and Sessions Court, Nalgonda.

5.

Chairman, Land Reforms Appellate Tribunal, Warangal.

5.

Chairman, Land Reforms Appellate Tribunal, Warangal-cum-II
Additional District and Sessions Court, Warangal.

6.

Chairman, Land Reforms Appellate Tribunal, Ranga Reddy at
Saroornagar.

6.

Chairman, Land Reforms Appellate Tribunal, Ranga Reddy at
Saroornagar-cum-II Additional District and Sessions Court, Ranga
Reddy at Saroornagar

2. Re-Constitution of Six (6) Appellate Tribunals under the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 - (Act

No. 1 of 1973

) - Section 20

[GO.Ms.No. 701, Revenue (Land Reforms), dated 13-7-1994]

In exercise of the powers conferred by sub-section (1) of Section 20 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Act

No. 1 of 1973

) and in supersession of all previous notifications issued in this behalf, the Governor of Andhra Pradesh hereby

constitutes with immediate effect the Appellate Tribunals in the State as specified in column (2) of the Table below each consisting of a judicial officer of that rank of a District and Sessions Judge and having head-quarters and jurisdiction as specified in columns (3) and (4) respectively thereof :

The Table

Sl.No.

Name of the Appellate Tribunal

Head Quarters

Jurisdiction

1

2

3

4

1.

Land Reforms Appellate Tribunal, Kakinada

Kakinada

East Godavari District

2.

Land Reforms Appellate Tribunal, Eluru

Eluru

West Godavari, Krishna & Guntur Districts.

3.

Land Reforms Appellate Tribunal, Nalgonda.

Nalgonda

Nalgonda District.

4.

Land Reforms Appellate Tribunal, Warangal

Warangal

Warangal and Khammam Districts.

5.

Land Reforms Appellate Tribunal, Karimnagar

Karimnagar

Karimnagar, Nizamabad and Adilabad Districts.

6.

Land Reforms Appellate Tribunal, Ranga Reddy

Hyderabad

Ranga Reddy and Medak Districts.

3. Land Committee - Constituted under the Chairmanship of Sri Koneru Ranga Rao Hon'ble Minister for M.A.&U.D. Recommendation No.1.3 - Accepted - Instructions - Issued.

[GO.Ms.No.563, Revenue (Land Reforms) Department dated 31.3.2008]

Read the following:-

1. G.O.Ms.No.1191, Revenue (Assgn.POT) Department, dated 7-9-2007.

2. From the Spl.C.S & CCLA., A.P.,Hyd.,Lr..No.B1/2128/2007, dated: 3.3.2008.

Order:

In the reference 1st read above, the Government have accepted the Recommendation No. 1.3 of Sri Koneru Ranga Rao Committee "the maximum extent of land which may be assigned to a single individual shall be limited to 1 acre of wet land or 2 acres of dry land, subject to the provision that in computing the area, lands owned by the assignee shall be taken into account so that the lands assigned to him/her together with what is already owned by him does not exceed the total extent of 1 acre of wet land or 2 acres of dry land."

2. Accordingly the Government have observed that instead of reducing the upper limit as recommended by Koneru Ranga Rao Committee it would be desirable to issue guidelines to ensure wider coverage among all eligible aspirants.

3. The Government have examined the matter in consultation with the CCLA., A.P., Hyderabad and hereby decided to

issue instructions to All the District Collectors in the State that while following the existing guidelines issued for assignment of land, they should also take into account the total land available for assignment in the Village, the No. of beneficiaries, the nature of land (Wet or Dry) and the viability of the size of land holding being assigned for cultivation and agriculture purpose while ensuring wider coverage in the number of beneficiaries as well as the categories of the beneficiaries being assigned lands.

4. All the District Collectors in the State are requested to take necessary action accordingly.

4. Land Reforms- Sri Koneru Ranga Rao Land Committee - Recommendations - Implementations of Recommendation Nos. 4.2 & 4.3 - A.P.L.R. (COAH) Act, 1973 - Further amended to Sec 14(2) & (5) Vide Act No.3 of 2008 dated: 16-4-2008 - Instructions - Issued.

[G.O.Ms.No.655, Revenue (Land Reforms) Department dated 9.5.2008]

Read the following:-

1. G.O.Ms.No.1049, Rev (Assn.Pot) Department dated 28.7.2007.

2. From the Spl. C.S. & C.C.L.A. Lr.No. LC1/566/2007, dated 17.8.2007.

Order:

Sri Koneru Ranga Rao Land Committee among others, in its recommendations No.4.2 and 4.3 has recommended as follows:

Recommendation No.4.2:

The MRO may be empowered to resume the ceiling surplus lands in case of violation of conditions of allotment/transfer, as in the case of POT Act.

Recommendation No.4.3:

The allotment of ceiling surplus land to the landless poor shall be done free of cost in the case of assignment of Government lands.

2. Government in the G.O first read above have accepted the above recommendations and requested the CCLA to furnish the necessary proposals to amend the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act,1973.

3. Based on the proposals received from the CCLA., Hyd., in the reference 2nd read above. The Government after careful examination of the matter, issued amendment to the Sec. 14 (2) & (5) of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act,1973 vide Act.No.3 of 2008 dated 16-4-2008 for implementation of Sri Koneru Ranga Rao Recommendations No.4.2 and 4.3.

4. A copy of the Amendment Act No.3/2008 dated 16-4-2008 is communicated herewith to all the District Collectors for implementation of KRR Committees Recommendation Nos. 4.2 & 4.3 and send compliance report to Special Commissioner, Sri Koneru Ranga Rao Committee, O/o CCLA., A.P., Hyd.

5. The Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Amendment Act, 2008 - Coming into force - Notification -Issued.

[GO.Ms.No.786, Revenue (Land Reforms) Department dated 25-6-2008]

Read the following:-

Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Amendment Act,2008 (Act.No.3 of 2008) Dated: 16-4-2008.

Notification

In exercise of the powers conferred by sub-section (2) of Section 1 of the Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Amendment Act, 2008 (Act No.3 of 2008), the Governor of Andhra Pradesh hereby appoints the 16th day of April, 2008 as the date on which the said Amendment Act shall come into force.

6. Andhra Pradesh Land Reforms (Ceiling on Agricultural Holdings) Act,1973 - Grant of exemption under Section 18(2) of the Act for Prawn/ Pisciculture projects - Guidelines - Proposals for Amended Guidelines - Accepted Orders Issued.

[G.O.Ms.No.878, Revenue (Land Reforms) Department dated 15-07-2008]

Read the following:-

1. G.O.Ms.No.627, Revenue (Land Reforms) Department, dated 9.7.1993.

2. G.O.Ms.No.27, Revenue (L.Refs.) Department, dated 11.1.1994.

3. From the Spl.C.S. & CCLA, A.P.,Hyd.,Lr.No.Spl.B.2/459/2004, dated 26.5.2008.

Order:

In the circumstances as reported by the Special Chief Secretary & Chief Commissioner of Land Administration, Andhra

Pradesh, Hyderabad, vide his letter 3rd read above Government after careful consideration, hereby relax the conditions laid-down in G.O. 2nd read above regarding the ceiling limits of land holding in the case of individual Entrepreneurs who are intending to take-up Pisciculture/Prawn Culture to the maximum limit of 100 Hectares with a view to encourage Individual Entrepreneurs to take up such Integrated projects.

The Special Chief Secretary & Chief Commissioner of Land Administration, Andhra Pradesh, Hyderabad shall take necessary action accordingly.

Related AI tags, queries and research notes

Translation